

Pine Brook Meadows Homeowners' Association
Rules & Regulations
Effective: July 1, 2017

The Pine Brook Meadows Homeowners' Association (HOA) Declaration of Covenants, Condition, and Restrictions (CC&Rs) and Bylaws were established in 1984. Over the years, the Board of Directors and committees has worked to keep our community in line with those Declarations. It has become increasingly difficult to maintain, given contemporary times.

Therefore, the Board of Directors has established a set of Rules and Regulations according to Article VII, Powers and duties of the Board of Directors, Section 1, that are more specific and customized to the current needs of our community. These Rules and Regulations will also help us enforce the governing documents.

Our goal is to:

- Protect, preserve and enhance the community property values and assets;
- Promote a sense of community with harmonious living;
- Anticipate and ensure that reasonable needs and expectations of all residents are met to use and enjoy their community.

These rules apply equally to all owners, residents, occupants, and tenants.

These Rules & Regulations have been approved by the Board of Directors in accordance with the CC&Rs, Bylaws, and RCW 64.38, and are subject to change with written notice to all residents at their last known address. Enforcement of these rules shall be by the association Board of Directors or managing agent for the association.

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1. GENERAL RULES

- a) No personal items, properties or structures, temporarily or permanently, may be stored or placed in any Common Areas including sidewalks, walkways, alleys, and parks.
- b) No loud or disturbing noises or actions that will impact the rights, comfort, or convenience of any resident shall be permitted on the property. Loud or disturbing noises include, but are not limited to, loud car or home sound systems, shouting, barking dogs, and continuous and/or repeated honking of car horns, and/or home alarm systems.
- c) Smoking is prohibited in any of the Pine Brook Meadows Common Areas.
- d) Posting of any signs or notices of any kind in any Common Area must have the prior written approval of the Pine Brook Meadows HOA Board of Directors
- e) No rubbish, garbage, or debris of any kind shall be dumped, placed, or permitted to accumulate in any portion of the Property except in the appropriate disposal containers. Oversized waste or items such as mattresses, discarded furniture, household items, car parts, etc. must be removed from the premises at the owner's expense.
- f) Garbage and recycling containers must be pulled away from the street, and stored out of street sight within twenty-four (24) hours of pickup.
- g) No trees, shrubs or vegetation in the Common Areas may be cut or altered, without prior written permission from the Board.
- h) Due to the proximity of the homes, the use of fireworks is prohibited on the Common Areas and Lots, unless it is an event sponsored or sanctioned by the Association. Violating this policy is subject to a \$100 fine.
- i) No vehicles may be used in an unsafe or reckless manner on the Property. Driving and parking on the sidewalks is prohibited. No unlicensed, motor vehicles, snowmobiles or four wheelers may be driven or operated on the Common Areas, including but not limited to the streets, sidewalks and alleys.

2. ASSESSMENTS

- a) Assessments/ Homeowner dues are paid annually, and due on January 31, of each year.
- b) Any assessment not paid within thirty (30) days after the due date shall bear interest from the due date at the rate of 6 % per annum.

3. PET AND ANIMAL POLICIES

- a) Pet owners are directly and solely responsible for the behavior of their pets. Barking or other annoying conduct by a pet will not be tolerated.
- b) Pets must be on a leash or carried, and in the immediate control of their owner when outside of the owner's property.
- c) Owners are required to clean up all excrement deposited by their pets or the pets of their guests or visitors on the Property. Pet food is not allowed in any Common Area.
- d) No animals, other than domesticated pets, shall be allowed on the Property. No livestock or poultry shall be raised, bred, raised, or kept on any Lot.
- e) Owners will be financially liable for any damage caused by their pets.

4. YARDS AND DECKS

- a) Yards and decks should be maintained in a neat and orderly condition, and in accordance with community standards. Lawns and flowerbeds shall be regularly maintained and free of weeds.
- b) No burning of any kind is allowed on decks, patios, or in yards except when using barbeque units or self-contained fire pits.
- c) Seasonal decorations may be displayed, provided such decorations do not violate insurance, fire, or any local regulations. All seasonal decorations may be displayed not more than forty-five (45) days prior to, and must be removed within forty-five (45) days following the holiday date. Live Christmas trees must be disposed offsite.

5. PARKING/VEHICLES

- a) All boats, boat trailers, travel trailers, non-motorized campers, and other such recreational vehicles should be sight screened/and or stored behind a primary structure unless a variance is granted by the Board of Directors.
- b) Automobiles must be parked in garage, driveway, or street parking only. No parking on sidewalks. Street parking is to be used as temporary parking for guests and homeowners only, not for storage of vehicles for more than seventy-two (72) hours. No inoperable vehicles are allowed.
- c) Work on motorized vehicles of any type is limited to periodic maintenance to resident-owned automobiles and recreational vehicles. Maintenance must be performed in the owner's driveway. Radiator flushes are not allowed. At no time,

should automotive fluids of any type be disposed of in storm drains, sewers, garbage cans or on common area property.

6. ARCHITECTURAL MAINTENANCE/MODIFICATION OF HOMES

- a) The Architectural Control Committee (ACC) or the Board of Directors will be responsible for granting approval to homeowners for painting, landscape, and structural changes to the property.
- b) No person may alter the exterior appearance of any of the buildings or property without prior written approval from the ACC or the Board of Directors.
- c) No building, fence, wall or other structure shall be commenced, erected or maintained upon the Properties, nor shall any exterior addition to, change, or alteration be made until the plans and specifications showing the nature, kind, shape, height, materials and locations of the same have been submitted to and approved in writing by the Board of Directors or ACC.
- d) Except for violations of restrictions contained in Article VI, the Board of Directors or ACC will have thirty (30) days to approve or disapprove a project after a complete set of provisions and specifications has been submitted to them.
- e) Architectural Control Committee submission forms are available on the Association's website, from the Board of Directors member, or the community association manager.
- f) The homes, fences, outbuildings, and exterior structures shall be maintained so they do not endanger or negatively affect in any way the value of any other owner's property.
- g) The ACC or Board of Directors reserve the right to request that homeowners replace, remove, re-stain, repaint, or repair any fence or exposed portion of the home that is considered unsightly or detracts from the property value or safe keeping of property. Such unsightly items include, but are not limited to: mildew, discoloration, warping, damaged, broken boards, gates, or siding.

7. COMPLAINT PROCEDURES

- a) Often owners and tenants are not aware that an action by them is in violation of the Governing Documents. Any complaint by an owner must be made in writing via email or postal mail, and submitted to the Community Association Manager or, in the absence of a manager, to the Board of Directors. It must include specifics: date, time, lot number that is in violation, as well as a brief narrative of the complaint.
- b) A written notice of the reported violation shall be sent to the owner.

- c) Homeowners are entitled to request a hearing before the Hearing Panel Committee or Board of Directors to determine if there was a violation. The hearing must be requested within fifteen (15) days of receipt of the notice of violation. The Hearing Panel Committee is made up of at least three board members and two homeowners, if available; otherwise the Board of Directors will act in its stead.
- d) All parties involved shall be notified regarding the hearing date and have an opportunity to present information. The Hearing Panel Committee or Board of Directors shall determine, by a majority vote, whether an infraction has occurred and if the fine is appropriate. All parties shall be notified of the Hearing Panel Committee or Board of Director decision in writing.

8. FINE SCHEDULE

- a) The Board of Directors may enforce the following fine schedule for violations of the Association's Governing Documents, including, but not limited to, the Declaration, Bylaws, Rules & Regulations, and any decision of the Board:

1st violation: Warning letter, of up \$50 fine, unless otherwise provided in specific rule.

2nd violation: Fine up to \$100, at the Board's discretion, unless otherwise provided in a specific rule.

3rd or more violations: Fine up to \$200, at the Board's discretion, unless otherwise provided in a specific rule.

Continuing Violations: Every day a violation continues shall be considered a separate offense, and will be subject to an additional fine of \$20 per day, beginning seven (7) days after the owner is notified of the fine until the violation is corrected.

- b) Interest will be assessed for any fine delinquent over thirty (30) days, at the same rate as assessments. All fines will be treated and subject to the same collection procedures as past due assessments.

EMERGENCIES

The board is not responsible to vandalism to private homes or property. If fire, medical, or police assistance is needed, CALL 911!

CERTIFICATE OF ADOPTION

The undersigned Directors of Pine Brook Meadows Homeowners' Association hereby certifies that the Board of Directors duly adopted the foregoing Rules and Regulations at a meeting of the Board held on June 15, 2017.

These Rules supersede any previous versions, and shall be effective July 1, 2017.

X Jennifer McBride
Jennifer McBride
Secretary

X Judy Adams
Judy Adams
President